

File No.: EXP202405368

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection, indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for Data Protection were noted, leading to the initiation of actions under file number EXP202309003. The complaint was accepted for processing on September 22, 2023.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to the control authorities under Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD hereinafter).

In the framework of the investigative actions, two requests for information were sent to the TOWN HALL OF EL PUERTO DE SANTA MARÍA with NIF P1102700J (hereinafter, the Town Hall), regarding the complaint indicated in the first section, requesting that within ten working days, it submit to this Agency the information and documentation specified:

- NIF and corporate name of the establishment located at ***ADDRESS.1, with the trade name "PANDA," according to the information held in the Town Hall's records.
- Verification of the existence of surveillance cameras on the facade of said establishment without signage.

THIRD: The request for information, which was notified on both occasions in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) through electronic means, was received by the Town Hall on January 15 and February 12, 2024, as evidenced by the acknowledgments of receipt in the file.

FOURTH: On February 14, 2024, and under registration number REGAGE24e00011753233, a document was registered with this Agency in which the Town Hall states that the competencies in the area of video surveillance and inspection correspond to the National Police Corps, and therefore, they say, this Agency should request collaboration from the National Police Station of El Puerto de Santa María.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

FIFTH: Following the aforementioned response, a new request for information was sent to the Town Hall twice, asking that within ten working days, it provide this Agency with the information required in the first point:

- NIF and corporate name of the establishment located at ***ADDRESS.1, with the trade name "PANDA," according to the information held in the Town Hall's records.

The new request, which was notified on both occasions in accordance with the rules established in the LPACAP through electronic means, was received by the Town Hall on February 20 and March 11, 2024, as evidenced by the acknowledgments of receipt in the file.

SIXTH: Regarding the requested information, the Town Hall has not sent any response to this Spanish Agency for Data Protection within the deadlines granted for this purpose.

SEVENTH: On April 15, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the Town Hall, in accordance with the provisions of Articles 63 and 64 of the LPACAP, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

EIGHTH: The aforementioned initiation agreement was received by the Town Hall on April 16, 2024, as evidenced by the acknowledgment of receipt in the file.

NINTH: On April 30, 2024, and under registration number REGAGE24e00031572591, the Town Hall submitted a document in which it responds to the request for information made in the framework of file EXP202309003. Regarding the subject of the current sanctioning procedure, the Town Hall states that "it is the intention of this Town Hall to provide all available information requested by the AEPD within the deadline, as was done in the previous request regarding the same file 2023 09003 referenced in the initiation agreement, whose information was sent via the registration interconnection system on February 14, 2024.

In relation to the second request for information, the information unit initiated its processing and requested the involved services for the information again required by the AEPD, and likewise directly reviewed, as responsible for the General Registry of the Town Hall, all information that could contain any data related to said commercial establishment.

As proof of the initiation of the processing of the procedure and the willingness to comply with the request, a copy of the emails requesting information dated March 18, 2024, is attached; however, due to an administrative error, the official document remained pending in the signature tray, so the unit did not notice the error until receiving the notification of the initiation agreement of the sanctioning procedure.

On the other hand, we inform you that this Local Corporation lacks personal resources, which hinders the performance of the functions entrusted to it. In this regard, the existing workload in the different municipal areas is quite

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

3/10

significant, as it pertains to a problem that has been ongoing for years, as a consequence of the approval, in 2012, of the Adjustment Plan, which has led to a loss of personnel over all these years, compounded by the fact that the last public employment offer approved by that City Council is from 2008, and that, in addition, all of this has been exacerbated by the pandemic experienced in recent years, which has caused a slowdown in the activities that this Administration must carry out, and, at the same time, a reduction in services.

Specifically, this administrative unit currently suffers from a lack of personnel; the person who processed these files, among others, has been filling the position through temporary contracts that have succeeded one another but not continuously, which has resulted in a workload that has been carried over with each hiring, which ended last December 2023, and whose position remains unfilled, leading to delays in addressing the requests that have been made. Nevertheless, I would like to inform you that the hiring of new personnel is already in process, with the aim of improving the functioning of the service and therefore of the administrative unit."

For all the above reasons, the City Council requests that "the allegations presented and the information provided by this Local Corporation be taken into account despite being out of time, and that the proceedings related to the sanctioning procedure be archived, as well as to confirm that the City Council of El Puerto de Santa María is at the disposal of the Spanish Agency for Data Protection."

TENTH: On November 11, 2024, a proposal for resolution was made, proposing that the Director of the Spanish Agency for Data Protection declare that the City Council has violated the provisions of Article 58.1 of the GDPR, an infringement classified in Article 83.5 of the GDPR. This proposal for resolution was duly notified to the City Council.

ELEVENTH: On November 22, 2024, and with registration number REGAGE24e00088580128, the City Council submitted a written statement of allegations to the Proposal for resolution, in which it states the following.

"The AEPD considers in its point II of the Legal Grounds of the Resolution dated November 14, 2024, that the allegations made by this City Council on April 30, 2014, during the hearing process regarding the initiation of the sanctioning procedure, 'do not affect the existence of the proven facts.' In this

regard, this City Council has never denied the facts, which were a consequence of the existence of an administrative error along with a lack of personal resources, as was already noted in our previous writing, preventing the request from being addressed within the legally established timeframe, a request that was ultimately attended to, although we were outside the initially granted deadline, so the AEPD was finally able to obtain the requested information.

It should also be noted that, at first, the possibility of sending the information provided by Tax Management and Opening Licenses regarding the non-existence of data related to the requested premises was evaluated. Nevertheless, and in order to collaborate in the exercise of the development of the...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

4/10

competencies by the Control Authority, another means was sought to obtain the information, through an investigative effort that concluded with the on-site location of the name of the establishment, from which point the data could be obtained through Tax Inspection and Urban Discipline.

On the other hand, the double request for information made on February 13, 2024, by the AEPD, requesting information already required in January, which had been addressed by a letter dated February 5, 2024, led to confusion upon receiving a new request for information from that agency dated February 20, 2024, thinking that the same information was being requested again.

For all these reasons, at no time has this Administration intended to violate the principle of collaboration between Public Administrations established by Article 3.1.k and 140 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector. We reiterate the lack of personal resources that hinder the performance of the functions of this Local Administration (...) as indicated in our previous letter (...).

In this regard, we proceeded to respond to the request made, although not within the legally granted deadlines by that agency in its requests, with no intention of failing to provide the requested information, and the situation caused by not addressing the AEPD's requests in a timely manner is the result of a succession of errors and lack of personal resources, combined with the difficulty of carrying out the necessary inquiries to obtain the requested information, as the data provided by the Control Authority did not correspond with those existing in the databases of this Local Corporation.

For all these reasons, the City Council requests that "the allegations made be considered, and that the AEPD evaluate that the information was ultimately sent and that, at the same time, we understand that no harm or detriment has been caused, since the request made by that agency did not indicate any reason or circumstance of special relevance that should have been taken into account.

All this, together with the fact that, at no time did this Administration consider the possibility of denying the requested collaboration due to insufficient resources, requests the filing of the actions in the sanctioning procedure initiated on April 15, 2024 (EXPT. 202405368)."

In view of all that has been acted upon, the Spanish Agency for Data Protection considers the following proven facts in the present procedure,

PROVEN FACTS

FIRST: The request for information indicated in the fifth antecedent was notified in accordance with the provisions of the LPACAP.

SECOND: The City Council did not respond to the second request for information made by this Agency in the context of the investigation of file number EXP202309003 prior to the issuance of the agreement to initiate the present sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each control authority by Article 58.2 of the GDPR and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Allegations after the initiation agreement

In response to the action taken by the City Council in response to the request for information, the following should be noted.

The response to the request for information provided during the instruction of this procedure does not affect the existence of the proven facts constituting an infringement.

Regarding the allegations concerning the lack of intention to violate the regulations and the lack of personal resources, the following should be noted.

The principle of responsibility provided for in Article 28.1 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector, states that: "Only individuals and legal entities, as well as, when a law recognizes them the capacity to act, the groups of affected individuals, unions, and entities without legal personality and independent or autonomous assets, that are responsible for them by way of intent or negligence, may be sanctioned for acts constituting administrative infringement."

However, according to the ruling in STS 7887/2011 of November 24, 2011, Rec. 258/2009, "(...) since its ruling 76/1990, of April 26, the Constitutional Court has been declaring that objective or non-fault liability is not applicable in the administrative sanctioning field, a doctrine that is reaffirmed in ruling 164/2005, of June 20, 2005, whereby the possibility of imposing sanctions for mere results, without proving a minimum level of culpability even in terms of mere negligence, is excluded. However, the way of attributing responsibility to legal entities does not correspond to the forms of culpability that are imputable to human conduct."

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/10

It thus happens that, in the case of infringements committed by legal entities, although the element of culpability must be present (see the ruling of this Chamber of the Supreme Court of November 20, 2011, appeal for cassation in the interest of the law 48/2007), it necessarily applies differently than it does with respect to natural persons. According to STC 246/1991 "(...) this different construction of the attribution of authorship of the infringement to the legal entity arises from the very nature of the legal fiction to which these subjects respond. They lack the volitional element in the strict sense, but not the capacity to infringe the norms to which they are subject. The capacity for infringement and, therefore, direct reproachability that derives from the legal good protected by the norm that is infringed and the necessity for such protection to be truly effective, and the risk that, consequently, must be assumed by the legal entity that is subject to compliance with that norm."

To the above, it should be added, following the ruling of January 23, 1998, partially transcribed in STS 6262/2009, of October 9, 2009, Rec 5285/2005, and STS 6336/2009, of October 23, 2009, Rec 1067/2006, that "although the culpability of the conduct must also be proven, it should be considered in terms of the assumption of the corresponding burden, that ordinarily the volitional and cognitive elements necessary to appreciate it are part of the proven typical conduct, and that their exclusion requires evidence of the absence of such elements, or in its normative aspect, that due diligence has been exercised by the one who claims its non-existence; in short, the mere invocation of the absence of fault is not sufficient for exculpation against a typically unlawful behavior."

In light of this, none of the circumstances present in the case allow for the exclusion of this subjective element of the infringement.

Regarding the information communicated, this Agency acknowledges receipt of it, without this declaration implying any pronouncement on it.

III

Allegations to the proposed resolution

In response to the allegations against the proposed resolution of this file presented by the City Council, the following should be noted.

The allegations presented against the proposed resolution of this file largely reproduce the same arguments raised against the initiation Agreement and that, therefore, have already been addressed by this Agency in the previous Legal Basis.

Regarding the assertion that "the double request for information made on February 13, 2024, by the AEPD, requesting information already requested in January, which had been addressed by a letter dated February 5, 2024, led to error upon receiving a new request for information from that agency dated February 20, 2024, thinking that the same information was being requested again," it is relevant to note that the referral, twice, of the second request to the City Council was made after the aforementioned response. Furthermore, the alleged confusion...

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

7/10

It is deemed unacceptable given that the City Council did not provide any response in its written submission regarding the information requested in the first point of the first requirement. Additionally, it is noted that the City Council did not present any response to the second information requirement nor did it express any difficulties in responding to it prior to the issuance of the agreement to initiate the present sanctioning procedure, despite having received said requirement on two occasions. Thus, the present sanctioning procedure was not initiated due to a late response, but rather due to an absolute lack of response regarding the requested information.

Regarding the City Council's assertion that "no damage or harm has been caused, since the requirement made by that body did not indicate any reason or circumstance of special relevance that should have been taken into account," it should be recalled that the infringing type is completed with the lack of response to the requested information and is not conditioned on whether the requested party is aware of the progress of the investigation and the possible consequences of their lack of response, as it is up to this Agency to assess the necessity for the investigation of the requested information at the time it is made. Furthermore, the requested information was essential to identify the infringing subject, an identity that could not be known by other means, and therefore, its lack of response constituted an evident obstruction to the investigative work of this Agency.

For the reasons stated, the request of the City Council regarding the non-existence of responsibility and the filing of the present sanctioning file cannot be granted.

IV

Unfulfilled Obligation

In light of the facts presented, it is considered that the City Council did not provide the Spanish Agency for Data Protection with the information it requested prior to the initiation of the present sanctioning procedure.

With the aforementioned conduct of the City Council, the investigative power that Article 58.1 of the GDPR confers on the supervisory authorities, in this case, the AEPD, was hindered.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the City Council, for violating Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

"a) to order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information necessary for the performance of its tasks."

V

Classification and Qualification of the Infringement

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

The facts presented are considered to constitute an infringement, attributable to the City Council. This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “not providing access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Not providing access to the personal data, information, premises, equipment, and means of processing that are required by the competent data protection authority for the exercise of its investigative powers.”

VI

Imposed Sanction

Article 83.7 of the GDPR provides as follows:

“Without prejudice to the corrective powers of the supervisory authorities under Article 58, paragraph 2, each Member State may establish rules on whether and to what extent administrative fines may be imposed on authorities and public bodies established in that Member State.”

Furthermore, Article 77 “Applicable Regime for Certain Categories of Controllers or Processors” of the LOPDGDD provides as follows:

“1. The regime established in this article shall apply to the processing for which they are responsible or processors:

(...)

c) The General Administration of the State, the Administrations of the autonomous communities, and the entities that make up the Local Administration.

(...)

2. When the controllers or processors listed in paragraph 1 commit any of the infringements referred to in Articles 72 to 74 of this organic law, the competent data protection authority shall issue a resolution declaring the infringement and establishing, where appropriate, the measures to be taken to cease the conduct or to correct the effects of the infringement that has been committed, except for that provided for in Article 58.2.i of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016.

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

The resolution will be notified to the person responsible or in charge of the processing, to the body to which they hierarchically depend, if applicable, and to the affected parties who had the status of interested parties, if applicable.

3. Without prejudice to the provisions of the previous section, the data protection authority will also propose the initiation of disciplinary actions when there are sufficient indications for it. In this case, the procedure and the sanctions to be applied will be those established in the legislation on disciplinary or sanctioning regimes that are applicable.

Furthermore, when the infringements are attributable to authorities and executives, and it is proven that there are technical reports or recommendations for processing that have not been duly addressed, the resolution imposing the sanction will include a reprimand naming the responsible position and will order the publication in the corresponding Official State or regional Gazette.

4. The resolutions related to the measures and actions referred to in the previous sections must be communicated to the data protection authority.

5. The actions carried out and the resolutions issued under this article will be communicated to the Ombudsman or, where applicable, to the analogous institutions of the autonomous communities.

Therefore, in accordance with the applicable legislation, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE that the CITY COUNCIL OF EL PUERTO DE SANTA MARÍA, with NIF P1102700J, has infringed the provisions of Article 58.1 of the GDPR, an infringement classified in Article 83.5 of the GDPR.

SECOND: TO NOTIFY this resolution to the CITY COUNCIL OF EL PUERTO DE SANTA MARÍA.

THIRD: TO COMMUNICATE this resolution to the Ombudsman, in accordance with the provisions of Article 77.5 of the LOPDGDD.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Presidency of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Litigation Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Litigation Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be suspended provisionally if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry

[<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not have knowledge of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

938-16012024

Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy of the Presidency and Deputy Presidency

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es